

25VECV06273 25VECV06273

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-19

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C08%2F19%2F2026

Source SHA-256: a4927b2f8ab429448bbedb5e468176ce475b71158246cd2528eb937761525f10

Case Number: 25VECV06273 Hearing Date: August 19, 2026 Dept: I

25VECV06273 ENEKA

FRANKLIN-CUMMINGS vs BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY, et al.

August 19, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel
and Sanctions

I.

Background

On October

31, 2025, Plaintiff Eneka Franklin-Cummings ("Plaintiff") filed a complaint against BMW of North America, LLC ("BMW"), Sherman Oaks-B, Inc. dba BMW of Sherman Oaks ("BMW Sherman Oaks"), and Does 1 to 10 alleging four causes of action: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act; (3) violation of the Song-Beverly Act Section 1793.2; and (4) negligent repair.

On June

24, 2026, BMW filed the instant motion to compel the inspection of Plaintiff's vehicle.

On August

6, 2026, Plaintiff filed her opposition.

On August

12, 2026, BMW filed its reply.

II. Legal

Standard

CCP § 2031.020 permits a defendant to make a demand for inspection, copying, testing, or sampling without leave of court at any time. (See CCP § 2031.020(a).)

III. Discussion

On December 11, 2025, BMW served its notice of vehicle inspection on Plaintiff scheduled for February 9, 2026. (Moore Decl. at ¶ 4; Exh. A [notice].) BMW declares that it attempted to meet and confer with Plaintiff at least three times regarding inspection of the Vehicle. (Id. at ¶ 5; Exh. B [correspondence].) As of the date of this motion, Plaintiff failed to provide availability for the inspection. (Id. at ¶ 6.)

In opposition, Plaintiff argues that the motion is moot because, on July 16, 2026, Plaintiff provided availability for the dates of November 2, 2026. (Cardenas Decl. at ¶¶ 3-4; Exh. 1 [correspondence].) Notably, this date was only provided after the initial motion was filed.

In reply, BMW argues that sanctions are still warranted since Plaintiff only provided alternative dates after this motion was filed. (Reply at p. 2.) The Court agrees.

BMW requests \$1,600.00 in sanctions, representing four hours of work at an hourly rate of \$400.00. (Moore Decl. at ¶ 8.) The Court finds this amount reasonable.

IV. Conclusion

Based on the foregoing, BMW's motion is GRANTED. Plaintiff is to produce the Vehicle for inspection within 20

days of this order. Additionally, Plaintiff and Plaintiff's counsel, jointly and severally, are to pay defense counsel sanctions in the amount of \$1,600.00 within 30 days of this order.

Moving party to give notice.